

Mobile App - terms and conditions

Terms of Use

1. Introduction

Welcome to the e-commerce mobile application and web portal of Biotech Vision Care Pvt Ltd (hereinafter together referred to as **the Mobile App or the application**). By registering or clicking the "agree" button or installing the Mobile App or by using the service in any manner whatsoever, you agree to all the terms and conditions contained herein. These terms of use ("the Terms") constitute a legally binding agreement between you and **Biotech Vision Care Pvt Ltd (hereinafter referred to as Biotech)** and shall govern your use of the Mobile App and the information, offers, services, features, content, offered through the Mobile App ("the **services**"). These terms may be updated by **Biotech** from time to time. Please note that if you are an individual you must be over the age of majority under the laws of your jurisdiction to enter into this agreement otherwise, you are expressly prohibited from entering into this agreement and advised not to access the Mobile App and/or its services.

You agree to access the Mobile App subject to acceptance of the terms as set out herein. In addition, when using any particular Services, you may be subject to any posted guidelines or rules applicable to such Services. All such guidelines or rules are hereby incorporated by reference into these terms.

Definition of 'user' or 'you' means any person who accesses or avails the Mobile App of Biotech for the purpose of viewing its products, published content, market data, research reports, texts & videos and/or sharing, displaying, uploading information from the Mobile App or viewing and includes other persons jointly participating in using the Mobile App of Biotech or any group created for the discussion and/or use of the same.

You hereby represent, warrant and covenant that you have provided us with accurate, genuine, and complete registration information including your name ('user name'), mobile number, e-mail address and / or other information and you shall at all times keep your registration information accurate and up-to-date. Failure to do so shall constitute a breach of these terms, which may result in immediate termination of your account.

By accessing the Mobile App and/or any service you agree to be bound by these terms. You hereby represent and warrant to Biotech that you are at least eighteen (18) years of age or above and are capable of entering, performing and adhering to these terms and that you agree to be bound by these Terms.

You agree that you are solely responsible for any breach of your obligations under the Terms and for the consequences (including any loss or damage which Biotech may suffer) of any such breach.

If you do not agree with these Terms, please do not use this Mobile App and/or the services provided herein.

2. COMPATIBILITY

DEVICES:

In order to stream or download Digital Content, you will need to use a portable computing device such as smartphone, or other device that meets the system and compatibility requirements that we establish from time to time (a "Compatible Device"). Some Compatible Devices may be used only to stream Digital Content, some may be used only to download Digital Content, and some may be used to stream and download Digital Content. We may change the requirements for Compatible Devices from time to time and, in some cases, whether a device is (or remains) a Compatible Device may depend on the software or systems provided or maintained by the device manufacturer or other third parties. Accordingly, devices that are Compatible Devices at one time may cease to be Compatible Devices in the future.

You can stream/ download videos using the following compatible devices:

- Google compliant non-rooted android and
- Apple Authorized unblocked (non-jail break) Iphone

INTERNET CONNECTIVITY

In order to view/ stream/ download the videos, the user is required to have internet connectivity for seamless viewing/ streaming/ downloading.

3. REGISTRATION CRITERIA:

Mobile App provides free Registration:

a. Free Registered User

The features available to different types of users are available in the feature list. On duly filling up the online registration form by the user, the Mobile App will establish an account for the User. One Time Password (OTP) will be generated on the registered mobile number of the user. The user will have to enter the said OTP on the **Mobile App** verification screen to complete registration and to activate the account. Any services by the **Mobile App** are made available to registered users only. Registered Users to **Mobile App** services is limited only to the registered Mobile Number. Registration of services cannot be transferred to any other mobile number even in case of the same user.

Mobile App reserves the right to inspect the correctness of the information submitted, if found necessary. Any suspicious account will not be activated and Biotech reserves the right to deactivate a suspicious account till final acceptance by **Mobile App** irrespective of payment.

4. PAYMENT:

While availing any of the payment method/s available on the Mobile App, Biotech will not be responsible or assume any liability, whatsoever in respect of any loss or damage arising directly or indirectly to the user due to:

- a) Lack of authorization for any transaction/s, or
- b) Exceeding the preset limit mutually agreed by You and between "Bank/s", or
- c) Any payment issues arising out of the transaction, or
- d) Decline of transaction for any other reason/s

All payments made against the services on the Mobile App/by you shall be compulsorily in Indian Rupees acceptable in the Republic of India. The Mobile App will not facilitate any transaction in any other form of currency with respect to the purchases made on the Mobile App.

You understand, accept and agree that the payment facility provided by the **Mobile App** is neither a banking nor financial service but is merely a facilitator providing an electronic, automated online electronic payment, collection and remittance facility for the Transactions on the **Mobile App** using the existing authorized banking infrastructure and Credit Card payment gateway networks. Further, by providing Payment Facility, **Mobile App** is neither acting as trustees nor acting in a fiduciary capacity with respect to the Transaction.

A. Payment Facility for Buyers:

- a) **Biotech** reserves the right to impose limits on the number of Transactions or Transaction Price which **Biotech** may receive from an individual Valid Credit/Debit/ Cash Card / Valid Bank Account/ and such other infrastructure or any other financial instrument directly or indirectly through payment aggregator or through any such facility authorized by the Reserve Bank of India to provide enabling support facility for collection and remittance of payment or by an individual Buyer during any time period, and reserves the right to refuse to process Transactions exceeding such limit.
- b) **Biotech** reserves the right to refuse to process Transactions by Buyers with a prior history of questionable charges including without limitation breach of any agreements by Buyer with **Biotech** or breach/violation of any law or any charges imposed by Issuing Bank or breach of any policy.
- c) **Biotech** may delay notifying the payment confirmation, if **Biotech** deems suspicious or for Buyers conducting high transaction volumes to ensure safety of the Transaction and Transaction Price. In addition, **Biotech** may hold Transaction Price or remit Transaction Price to law enforcement officials (instead of refunding the refundable amount to the Buyer) at the request of law enforcement officials or in the event the Buyer is engaged in any form of illegal activity.

B. Compliance with Laws:

- a) All the Users of the Mobile App and/or the Buyers of the Services shall comply with the applicable laws (including without limitation Foreign Exchange Management Act, 1999 and the rules made and notifications issued there under and the Exchange Control Manual as may be issued by Reserve Bank of India from time to time, Customs Act, Information and Technology Act, 2000 as amended by the Information Technology (Amendment) Act 2008, Prevention of Money Laundering Act, 2002 and the rules made there under, Foreign Contribution Regulation Act, 1976 and the rules made there under, Income Tax Act, 1961 and the rules made there under, Export Import Policy of government of India) applicable to them respectively for using Payment Facility and **Mobile App**.

b) Buyer's arrangement with Issuing Bank:

All Valid Credit / Debit/ Cash Card/ and other payment instruments are processed using a Credit Card payment gateway or appropriate payment system infrastructure and the same will also be governed by the terms and conditions agreed to between the Buyer and the respective Issuing Bank and payment instrument issuing company. All Online Bank Transfers from Valid Bank Accounts are processed using the gateway provided by the respective Issuing Bank which support Payment Facility to provide these services to the Users. All such Online Bank Transfers on Payment Facility are also governed by the terms and conditions agreed to between Buyer and the respective Issuing Bank.

C. Taxes:

If the **Mobile App** is required to collect or pay any taxes in connection with your purchase of a Paid Service, such taxes will be charged to you at the time of each purchase transaction.

Additionally, if required by law, you are responsible for reporting and paying certain taxes in connection with your purchase and use of a Paid Service. Such taxes may include duties, GST, customs fees, or other taxes, along with any related penalties or interest, as applicable to your purchase or country of purchase.

5. SHIPPING:

All orders placed on Mobile App will be shipped by the respective Branch/CFA/Location offices of Biotech through Courier/ Post/ Hand Delivery. Any discrepancy between the Invoice Value and Physical Goods should be reported immediately to Biotech Office address mentioned on the Invoice.

6. DISCLAIMER OF WARRANTIES AND LIABILITY

A. You understand and agree that the **Mobile App** provides the Services on an "as is", "with all faults" and "as available" basis. All warranties including, without limitation, the implied warranties of merchantability, fitness for a particular purpose, for the title and non-infringement are disclaimed and excluded.

B. Biotech shall not be liable, at any time for any direct, indirect, punitive, incidental, special or consequential damages including, without limitation, damages for loss of business, damage to hardware or loss of profits, loss of data or profits, whether arising in contract, tort or otherwise arising out of or in any way connected with the use of the Mobile App and/or its Services, with the delay or inability to use the said applications or Services, or due to use of the contents available in the applications or for any failure of performance, error, omission, interruption, deletion, defect, delay in operation or transmission, computer virus, communications line failure, or due to use of information contained in the applications.

C. In the event any exclusion contained herein be held to be invalid for any reason and **Biotech** or any of its affiliate entities, officers, directors or employees becomes liable for loss or damage, then any such liability of **Biotech** or any of its affiliate entities, officers, directors or employees shall be limited to the charges paid by you, if any, for the usage of the Mobile App and/or the Services, as the case maybe.

D. No representations, warranties or guarantees whatsoever are made by Biotech with respect to the **Mobile App /the Services** as to (a) accuracy, adequacy, reliability, completeness, suitability or applicability of the information to a particular situation; (b) claim that the Services will be uninterrupted, timely, secure, or error-free; (c) the quality of any services, content, information, or other material in the application will meet your expectations or requirements; or (d) any errors in the Mobile App will be corrected.

E. This application may have certain links which may lead to resources located on servers maintained by third parties. These third-party websites, applications may contain **Mobile App** logo, but they are independent from **Mobile App**, and **Mobile App** does not have any control over these websites or applications. **Mobile App**, therefore, accepts no responsibility or liability due to your use of such third-party websites or applications.

7. PROPRIETARY RIGHTS

Unless otherwise stated, copyright and all intellectual property rights in all material presented on the Mobile App (including but not limited to text, audio, video or graphical images), trademarks and logos appearing on this application and / or site are the property of **Biotech**, its, affiliates or associates and are protected under applicable Indian laws. You agree not to use any framing techniques to enclose any trademark or logo or other proprietary information of Biotech; or remove, conceal or obliterate any copyright or other proprietary notice or any credit- line or date-line on other mark or source identifier included on the Mobile App/ Service, including without limitation, the size, colour,

Location/s or style of all proprietary marks. Any infringement shall be vigorously defended and pursued to the fullest extent permitted by law.

8. YOUR OBLIGATIONS

As a condition of your use of the Mobile App, you shall not use the Mobile App and/or the Services for any purpose that is unlawful or prohibited by these Terms or you shall not use the application in any manner that could damage, disable, overburden, or impair the **Mobile App** server, or the network(s) connected to any **Mobile App** server, or interfere with any other party's use and enjoyment of any Services. You further concur that you shall not, through the application or Services indulge in the following activities:

- a) delete from the application any legal notices, disclaimers, or proprietary notices such as copyright or trademark symbols, or modify any logos that you do not own or have express permission to modify;
- b) use the application/Services in any manner that could damage, disable, overburden, or impair or undertake any action which is harmful or potentially harmful to any **Mobile App** server, or the network(s), computer systems/resources connected to any **Mobile App** server, or interfere with any other party's use and enjoyment of the application/Services;
- c) obtain or attempt to obtain any materials or information through any means not intentionally made available through the application/Services;
- d) perform any activity which is likely to cause such harm;
- e) carry out any other harmful attacks on the application or internet service or; disrupt, place unreasonable burdens or excessive loads on, interfere with or attempt to make or attempt any unauthorized access to the **Mobile App** or the website of any **Mobile App** customer;
- f) Forge headers or otherwise manipulate identifiers in order to disguise the origin of any content transmitted through the application.
- G) Impersonate any person or entity, including, but not limited to **Biotech** official, forum leader, guide or host, or falsely state or otherwise misrepresent your affiliation with a person or entity;
- h) take any action which encourages or consists of any threat of harm of any kind to any person or property or make any inappropriate, illegal or otherwise prohibited communication to any Newsgroup, Mailing List, Chat Facility, Group Chat or other Internet Forum/s
- i) collect or attempt to collect personally identifiable information of any person or entity without their express written consent;
- j) Engage in antisocial, disruptive, or destructive acts, including 'flaming,' 'spamming,' 'flooding,' 'trolling,' and 'griefing' as those terms are commonly understood and used on the Internet;
- k) Upload, post, email, transmit or otherwise make available any unsolicited or unauthorized advertising, promotional materials, 'junk mail', 'spam', 'chain letters', 'pyramid schemes', duplicative messages or any other form of solicitation.

9. PROHIBITED ACTIVITIES

You shall not host, display, upload, modify, publish, transmit, update or share any information on the Mobile App, that –

- a. Belongs to another person and to which you do not have any right;
- b. Is grossly harmful, harassing, blasphemous, defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy, hateful, or racially, ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise unlawful in any manner whatever;
- c. Harm minors in any way;
- d. Infringes any patent, trademark, copyright or other proprietary rights;
- e. Violates any law for the time being in force;
- f. Deceives or misleads the addressee about the origin of such messages or communicates any information which is grossly offensive or menacing in nature;
- g. Impersonate another person
- h. Contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer resource;
- i. Threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign states, or public order or causes incitement to the commission of any cognisable offence or prevents investigation of any offence or is insulting any other nation.

Any Content uploaded by you shall be subject to relevant laws and may be disabled, or / and may be subject to investigation under appropriate laws. Furthermore, if you are found to be in non-compliance with the laws and regulations, these terms, or the privacy policy of the Mobile App, we may terminate your account/block your access to the Mobile App and / or Services and we reserve the right to remove any non-compliant Content uploaded by you.

Any Content and or comment uploaded by you, shall be subject to relevant Indian laws and may be disabled, and may be subject to investigation under appropriate laws. Furthermore, if you are found to be in non-compliance with the laws and regulations, these terms, and / or the privacy policy of the Mobile App, Biotech shall have the right to immediately terminate/block your access and usage of the Mobile App and / or Services and Biotech shall have the right to immediately remove any non-compliant Content and or comment, uploaded by you and shall further have the right to take recourse to such remedies as would be available to Biotech under the applicable laws.

j. **Biotech** strongly cautions against installing any software that hacks iOS. It is also important to note that unauthorized modification of iOS is a violation of Biotech's end-user software license agreement and because of this, **Biotech** may deny any support or refuse to take any responsibility for any financial or data damage on any iPhone, iPad, or iPod touch that has installed any unauthorized software.

10. TERMINATION OF ACCOUNT

Biotech reserves its right to refuse service, restrict, suspend your access to the Mobile App and / or Service; delete, move, or remove any content that is available in or through the applications; establish general practices and limits concerning use of the application at any time with or without any prior notice.

11. INDEMNIFICATION

You agree to defend, indemnify and hold harmless **Biotech**, its affiliates and their respective directors, officers, employees and agents from and against all claims and expenses arising out of,

- the breach of any of the terms by you or
- due to your use/misuse of the Mobile App and / or Services or
- Interpretation / misinterpretation of any information, data, chart, etc.

12. PRIVACY - REFER TO PRIVACY POLICY

13. GRIEVANCE REDRESSAL MECHANISM:

- i. Any complaints, abuse or concerns with regards to content and or comment or breach of these terms shall be immediately informed via the feedback section of the application. Alternatively, it shall be immediately informed through email.

Designation of the Person

e-mail: it@biotechhealthcare.com

Address: Biotech Vision Care Pvt Ltd

Block 1, Abhishree Corporate Park, Opp, Swagat Bunglow BRTS Bus Stop, Bopal-
Aambli Road, Ahmedabad - 380 058, Gujarat, INDIA

- ii. We request you to provide the following information in your complaint:-
 - a) Related necessary proofs/ supporting should be provided with respect to the query/ disputed transaction
 - b) Your address, telephone number, e-mail address or any other details for Identification of the user. A statement that you have a good-faith belief that the information has been processed incorrectly or disclosed without authorization, as the case may be.

- c) A statement, under penalty of perjury, that the information in the notice is accurate, and that the information being complained about belongs to you;
- d) You may also contact us in case you have any questions / suggestions about the Privacy Policy and or these Terms & Conditions using the contact information mentioned above. Biotech shall not be responsible for any communication, if addressed, to any non-designated person in this regard. Biotech shall not be responsible for any communication if it is not received from the registered email address or registered mobile.

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- iii. Any dispute/ query should be on ongoing basis / repetitive in nature and can be shown to be reproduced
- iv. For disputes related to the payment (if payment has been paid more than once for the same service and for the same period), the user will have to provide payment details including but not restricted to proof of transaction in support of the dispute
- v. We reserve the right to approve or deny refund requests at our sole discretion, except where the Paid Service is defective.
- vi. Any grievance will be addressed within a period of 45 (forty five) workingdays

14. Applicable Law:

This Agreement shall be governed by the laws of India. The courts of law at Ahmedabad in the State of Gujarat shall have exclusive jurisdiction over any disputes arising under this agreement.

15. REFUND POLICY:

The Sales once done are final. There would be absolutely no refunds or cancellation of the products purchased and ordered. **Biotech** does not offer any refunds on the products purchased through the Mobile App. By registering to the **Mobile App/ Web Portal**, you acknowledge that you have read, understood and agree **Biotech's** No Refund and no Cancellation Policy.

16. TERMS OF SERVICE FOR SENDING SMS:

- a. As a registered User you authorize **Biotech** & its representatives to call You or SMS on your registered mobile number and / or email You on your registered email address.
- b. ANY DND (Do Not Disturb) user can opt-in for SMS alerts and will receive the SMS alerts and the user cannot complaint about SMS alerts which he/ she receive. Even if the user files complaint, **Biotech** will not be responsible
- c. It is the sole responsibility of the User/s to provide the correct mobile number to receive SMS alerts.
- d. The User/s has to bear any costs charged by the telephone company for receiving/ sending SMS if any.
- e. SMS alerts are sent as and when the event happens during/ post market hours, there's no fixed schedule to send the SMS alerts.
- f. There can be delay in delivery of the alert via SMS due to various factors like operator, traffic on SMS server, technical issues, etc. and Biotech cannot be held liable for that.
- g. You will not receive any SMS if the Government/ regulatory bodies stop SMS alerts to be sent for a specific period and **Biotech** cannot be held responsible for it.

17. These Terms shall apply to the application and all the users of the Mobile App and/or the Services. All the other terms and conditions with respect to specific services, for example disclaimers on the research reports, shall apply additionally.

17. LINKS TO THIRD PARTY SITES:

Biotech states that the on-line resources that can be accessed from the Mobile App by use of hypertext links are third party sites and not maintained or controlled by **Biotech**. **Biotech** is therefore not responsible for the content of such linked resources.

Biotech is not responsible for the security of such other sites, nor for the terms set out there under. All third party sites accessed by the Users through the Mobile App shall be at the cost and risk of the User.